

OBSERVATIONS BY Mr. MOORE.

While concurring in the conclusions and generally in the reasoning of the Court's Opinion, which stands as a monument to the laborious care with which all views and suggestions have been considered, I desire to say that, in my opinion, the first and main question, whether "under the law at present in force" the European Commission has the same powers from Galatz to Braila as it has below Galatz, shrinks on legal analysis into a small compass and is essentially simple.

That the law at present in force is first of all the Definitive Statute of July 23rd, 1921, a treaty signed and ratified by all the Parties to the present controversy, is undisputed; and of this treaty, as the merest reading of it will show, the manifest purpose is to assure, by means of two international bodies, respectively called the European Commission and the River Commission, the international control of the navigation of the entire navigable course of the Danube down to and into the sea. While Article 6 states that the jurisdiction (*compétence*) of the European Commission, which administers the sector navigable for sea-going ships, extends up to the point where the jurisdiction of the River Commission begins, and Article 9 states that this point is Braila, Article 39 stipulates for all practicable uniformity and consistency of administrative conditions over the entire internationalized stream, above Braila as well as below. It goes without saying that these objects never can be attained if the physical continuity of international control is interrupted, or if legal variety is to prevail in each sector. There is no room in either aspect for an "excluded middle".

It is also undisputed that, so far as concerns the European Commission, the very foundation of the Definitive Statute is the retention by the Commission of the powers it had before the war. The Treaty of Versailles, in pursuance of which the

Statute was made, expressly provides that the European Commission "reassumes the powers it possessed before the war". Article 5 of the Statute declares in identical terms that the Commission retains the powers it had before the war, and Article 6, in designating the upstream limit of the Commission's powers, speaks of its jurisdiction (*compétence*) as remaining in the same conditions as in the past and without any modification of its actual limits. When, therefore, the Statute designates Braila as the point to which the jurisdiction of the European Commission extends, the Statute itself unequivocally and conclusively fixes Braila as the place to which the jurisdiction of the Commission extended before the war. The question whether this extension was based on "tolerance", or on the Treaty of London of 1883, is now immaterial. No matter what the pre-war basis of the extension may have been, the Statute has supplied a basis of legal permanence.

It is now contended, however, that the European Commission's jurisdiction (*compétence*) between Galatz and Braila is not the same as that between Galatz and the sea, and that, while the Commission has full jurisdiction below Galatz, it has, between Galatz and Braila, only technical powers (*compétence technique*) and not juridical powers (*compétence juridique*). But we look in vain in the Definitive Statute for any such distinction; nor is it to be found in any of the treaties, conventions, international acts or arrangements which the Statute confirms. It is not mentioned in any legal instrument. It is indeed sought to be injected into the case under cover of the clause in Article 6 of the Statute, which speaks of the maintenance of past jurisdictional limits. But this clause neither mentions nor even remotely hints at any local severance of juridical from technical powers; and, when a definite legal basis for the distinction is required, the concrete response is the so-called Interpretative Protocol, a legally unclassified paper, which, in spite of its name, is neither incorporated nor referred to in the Interpretative Clauses annexed to the Statute and ratified as a part of it.

But even the "Interpretative Protocol" does not speak of "technical" powers and "juridical" powers. On the contrary, while saying that by Article 6 of the Statute no modification is made in the previous conditions or limits of the administrative régime, it declares that the powers of the European Commission must continue to be exercised, in the same manner as in the past, in conformity with the treaties, international acts and the regulations to which the present Parties to the Commission have adhered, and that the Commission shall continue, as in the past, to take care of the navigable channel between Galatz and Braila and its pilotage service. The alleged distinction between juridical powers and technical powers is nowhere mentioned and, when the argument is tested, the entire residuum is the claim that the express mention of the power to take care of the navigable channel and its pilotage service is to be interpreted as excluding the exercise of any juridical powers.

This claim, however, at once encounters two fundamental objections. The first is, that the claim is completely at variance with the plan of internationalization as it has existed on the Rhine and other rivers since 1815 and on the Danube since 1856. The adoption of this plan had no connection whatever with any capitulatory or extraterritorial system, no such system having existed among the States on the Rhine. The organization, with the assent and co-operation of the territorial sovereign, of a special service, international in character, with combined juridical and technical powers, constituted a fundamental part of the original plan, solely because it was conceived to be the appropriate means of assuring not only consistently improved conditions of navigation, but also freedom of navigation for all flags under a uniform law uniformly administered. The second objection is that, by the very terms of the various international instruments under which the Interpretative Protocol states that the European Commission is to continue to exercise its powers, the Commission's juridical powers are directly associated with the care of the navigable channel and the pilotage service, no less than with its other activities. Nothing can be plainer than this upon the face of all the international

agreements relating to the Danube, including the Public Act of Galatz of 1865, the Additional Act of 1881, and all the Regulations of Navigation and Police down to the present time. In order, therefore, to establish the suggested distinction in the legal situation between Galatz and Braila and the sector between Galatz and the sea, it would be necessary to show that the juridical powers in terms conferred upon the Commission by international agreements of undisputed validity have been renounced or abandoned, either expressly or by implication. No such proof has been adduced, and to argue that, in its absence, the European Commission now possesses above Galatz no juridical powers, is in effect to maintain that the specific provisions of the Definitive Statute, and of the previous international acts which it confirms, have been impliedly revoked by what the Interpretative Protocol failed to say.

The law at present in force is, in my judgment, precisely set forth in the brief statement just made. The theory that the words "actual limits", in Article 6 of the Definitive Statute, may be held to mean that the force, the effect, and even the survival of all other provisions, including those that declare its fundamental purpose, and those of the prior international agreements which Article 5 unreservedly confirms, must in future be contingent on affirmative proof, especially in the form of penal sentences, that each particular power conferred on the Commission not only was actually exercised, but was exercised in this, that, or the other sense, is hardly susceptible of legal discussion. On this theory, obedience to the law, or indeed the absence of proofs of its violation, would have the effect of annulling it. The supposition that the contracting Parties implanted in the Statute, consciously or unconsciously, a disintegrant so subtle and extraordinary, is, from the point of view of legal interpretation, hardly conceivable.

(Signed) J. B. MOORE.